

STATE OF NEW YORK

4446--A

2025-2026 Regular Sessions

IN SENATE

February 5, 2025

Introduced by Sens. KAVANAGH, S. RYAN, BASKIN, CLEARE, COONEY, FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Social Services -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to enacting the "shelter arrears eviction forestallment act" to provide emergency assistance for rent or mortgage arrears or other fees for the prevention of eviction

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "shelter arrears eviction forestallment act".

3 § 2. The social services law is amended by adding a new section 131-cc
4 to read as follows:

5 § 131-cc. Shelter arrears eviction forestallment program. 1. (a) With-
6 in amounts appropriated therefor, the office of temporary and disability
7 assistance shall establish the shelter arrears eviction forestallment
8 program to provide emergency assistance for rent arrears for the
9 prevention of eviction due to nonpayment of rent or mortgage arrears,
10 homeowners' association fees, legal fees, or late fees if an applicant
11 can establish that such expenses are necessary to retain their housing.
12 Funds shall be allocated to social services districts with a population
13 of five million or fewer, for services and expenses related to the
14 payment of rent arrears necessary to retain housing and to households
15 that are in receipt of or who would be eligible for ongoing or emergency
16 public assistance pursuant to section one hundred thirty-one-a of this
17 title but have exhausted the allowable frequency of such payments
18 through the emergency safety net assistance or emergency assistance to
19 families programs. Each social services district to which funds are
20 allocated pursuant to this section shall use best efforts to make such

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 funds available to households for the purposes set forth in this
2 section.

3 (b) The office of temporary and disability assistance shall allocate
4 funding to social services districts with a population of five million
5 or fewer, with a methodology that shall consider the rate of eviction
6 filings and other indicators of need as determined by the office of
7 temporary and disability assistance.

8 (c) The office shall establish rules for the administration of the
9 program, including but not limited to:

10 (i) requiring payments shall not exceed a total of six months of
11 arrears in addition to payments previously made through the emergency
12 safety net assistance or emergency assistance to families programs;

13 (ii) providing that such payments shall not be limited by the shelter
14 allowance amount set forth in section one hundred thirty-one-a of this
15 title and shall not be part of the standard of need pursuant to such
16 section;

17 (iii) providing that funding allocated to social services districts
18 pursuant to this section shall not replace or reduce any other emergency
19 assistance allocations such districts would otherwise receive;

20 (iv) requiring program payments be made directly to the landlord or
21 property owner on behalf of a tenant. Tenants, landlords and property
22 managers shall be notified of any assistance provided under the program;

23 (v) providing that program payments may be issued to households who
24 are unable to reasonably demonstrate an ability to pay future shelter
25 expenses;

26 (vi) providing that districts may establish local criteria regarding
27 the use of their allocations and will maintain responsibility for not
28 exceeding their allocation issued pursuant to this section; and

29 (vii) providing that districts may elect to delegate the adminis-
30 tration of the program established pursuant to this section, in full or
31 in part, to another public agency, contractor or non-profit organiza-
32 tion.

33 2. In a form and manner prescribed by the office of temporary and
34 disability assistance, social services districts with a population of
35 five million or fewer shall submit annual reports to the office includ-
36 ing but not limited to the following information:

37 (a) the criteria used by such social services district to determine
38 program eligibility;

39 (b) the dollar value of arrears issued under the program; and

40 (c) basic demographic information on the households served including
41 but not limited to the:

42 (i) number of households served;

43 (ii) number of households served for multiple periods;

44 (iii) number and percentage of households with and without children;

45 (iv) number and percentage of households with an open public assist-
46 ance (PA) case;

47 (v) age distribution of the primary tenant;

48 (vi) distribution of the number of children;

49 (vii) distribution of total payment amount; and

50 (viii) distribution of race and ethnicity.

51 3. The office of temporary and disability assistance shall submit a
52 report to the governor, the temporary president of the senate, and the
53 speaker of the assembly by the thirty-first of December of each year.
54 Such report shall cover the twelve-month period ending on the thirtieth
55 of September immediately preceding the date the report is due and shall
56 include but not be limited to the information submitted pursuant to

- 1 subdivision two of this section, in the aggregate for the state and for
- 2 each county.
- 3 § 3. This act shall take effect immediately.